

25CHCV00856 25CHCV00856

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-09-02

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Case Number: 25CHCV00856 Hearing Date: September 2, 2026 Dept: F47

Dept. F47

Date: 9/2/26

Case #25CHCV00856

MOTION TO BE

RELIEVED AS COUNSEL

Motion filed on 6/29/26.

MOVING ATTORNEY: Nathan Mubasher

CLIENTS: Defendants Gabriel O. Castillo; Staff Agency LLC;

Stockdale Holding LLC; Best Choice Hospice Service, Inc.; Devoted Guardians

Hospice; and Ardor Care Hospice

RESPONDING PARTY: Plaintiff Rosalva G. Kreuz

RELIEF REQUESTED: An order relieving Nathan

Mubasher as counsel for Defendants Gabriel O. Castillo; Staff Agency LLC;

Stockdale Holding LLC; Best Choice Hospice Service, Inc.; Devoted Guardians

Hospice; and Ardor Care Hospice.

RULING: The motion is denied without
prejudice.

On 6/29/26, attorney Nathan Mubasher filed the instant

motion seeking an order relieving him as counsel for Defendants Gabriel O. Castillo; Staff Agency LLC; Stockdale Holding LLC; Best Choice Hospice Service, Inc.; Devoted Guardians Hospice; and Ardor Care Hospice. On the same date, attorney Mubasher filed a proof of service which indicates that on 6/29/26, the motion was electronically served on counsel for Plaintiff Rosalva G. Kreuz. On 8/20/26, Plaintiff Rosalva G. Kreuz (Plaintiff) filed and served an opposition to the motion. On 8/26/26, attorney Mubasher filed and served a reply to the opposition. The proof of service attached to the reply also indicates that it was electronically served only on counsel for Plaintiff.

All documents in support of a motion to be relieved as counsel must be served on the client and on all other parties who have appeared in the case. See CRC 3.1362(d). Here, at the time the original motion papers were filed, attorney Mubasher did not file a proof of service showing that the motion papers were served on the clients. Additionally, No. 4.b. and No.4.k. in the notice of motion, reflecting that some of the clients are corporations or LLCs, are not marked. Further, No.6 in the proposed order does not set forth all of the necessary information for the clients.

On 8/26/26, attorney Mubasher filed amended motion papers purportedly addressing the foregoing defects in the motion. Rather than denying the motion without prejudice, attorney Mubasher requests that the hearing be continued to a date on or after 10/1/26, if the Court finds that the statutory notice period for the clients is required. While the reply contends that a proof of service reflecting service of the moving and amended papers on each Defendant by mail has been filed, only a proof of service regarding electronic service of the amended papers on Plaintiff's counsel was filed on 8/26/26. (See Reply, p.7:9-12; Proof of Service filed 8/26/26). On 8/31/26, a proof of service was filed indicating that the original motion papers were served on the clients by mail on 7/10/26. Also, on 8/31/26, a proof of service was filed indicating the amended motion papers were served on the clients by mail on 8/28/26 were filed. Proofs of service for motion papers must be filed at least 5 court days before the hearing date. CRC 3.1300(c).

The clients are entitled to the statutory notice period before a ruling is made on the motion. Further, attorney Mubasher cites no authority which allows him to file amended papers seven calendar days before the hearing. See

CCP 1005(b) (motion papers must be filed and served at least 16 court days before the hearing date + additional days depending upon the type of service).

While the foregoing procedural defects require that the motion be denied without prejudice, the opposition does not set forth any viable basis to deny the motion on the merits.

The authority cited in the opposition addresses the denial of motions to be relieved as counsel when such would prejudice the client, not the adverse party. See Ramirez (1994)

21 CA4th 904, 915; Flake (2017) 9 CA5th 223, 230. The fact that a corporation will be left without counsel, and therefore cannot appear before the court, does not prevent the granting of a motion to be relieved as counsel. See Gamet (2001) 91 CA4th 1276, 1284 fn.5.